

INSYS THERAPEUTICS, INC. ("COMPANY")
EMPLOYMENT OFFER STATEMENT ("OFFER STATEMENT")

TO: Mike Gurry

DATE: March 10, 2016

STATUS: Salary, Exempt

START DATE: March 10, 2016

POSITION: Senior Director-Managed Market Operations, reporting to the VP-Managed Markets & Patient Access. You will work at the Company's facility in Chandler, Arizona.

COMPENSATION:

ANNUAL BASE SALARY: \$195,000 per annum paid on a bi-weekly basis, and is subject to deductions for taxes and other withholdings as required by law or the policies of the Company.

BONUS ELIGIBILITY: You will be eligible to participate in any incentive program of the Company adopted by the Board and/or the compensation committee of the Board that provides for the payment of annual performance-based cash bonuses to the Company's employees. Any cash bonus earned by you pursuant to any such program will be subject to standard payroll deductions and applicable tax withholdings. In order to earn and receive any such cash bonus, you must remain employed by the Company as an employee in good standing through the end of the applicable calendar year and the payout date for the bonus. For the fiscal year ending December 31, 2016, effective upon satisfactory completion of the first 90-days of employment, and based upon the goals and objectives agreed to in the performance development planning process, you are eligible for a bonus up to 30% (thirty percent) of your base salary. Performance criteria shall be based on Company performance targets and individual performance targets.

EXPENSES: The Company will reimburse you for all reasonable business expenses you incur in conducting your duties, subject to the Company's usual expense reimbursement policies.

PAID TIME OFF:	Vacation is accrued at 4.62 hours per pay period, which is equivalent to three weeks on an annual basis. You will also have eight paid holidays and five personal/sick days. Please note that vacation time unused for the calendar year cannot be carried over into the next year. Upon termination of employment, you will not be paid for unused vacation or sick time unless otherwise required by state law.
BENEFITS:	Life insurance in the amount of \$100,000 is provided by the Company. Long term disability coverage, consistent with the Company benefits plan, shall be provided to you. These benefits are currently paid in full by the Company.
RETIREMENT:	Subject to all eligibility and waiting period requirements, you shall be entitled to participate in the 401(k) Plan.
PRE-EMPLOYMENT:	This offer is contingent upon a satisfactory result on the background investigation, drug screen, and motor vehicle record report.
TERMINATION:	Either you or the Company may terminate the "At-Will" employment. Upon termination of employment with the Company for any reason, or when the Company may so request, you will immediately deliver to the Company any or all Company property in your possession or under your control, including, but not limited to, Confidential Materials, computers, etc.
EMPLOYMENT STATUS:	"At Will" Employment; Nothing herein shall be construed to alter your status as an "At-Will" employee except in writing by the CEO.
TECHNOLOGY & IP:	During your employment by the Company, all intellectual property and technology developed as result of projects pursued by the Company, whether directly or indirectly, shall belong to the Company.
NON-COMPETE:	Unless otherwise modified by written agreement between you and the Company, during the term of your employment and for a period of one (1) year thereafter, you shall not engage in competition with the Company and/or any of its Affiliates (as defined above), either directly or indirectly, in any manner or capacity, in any phase of the business of developing, manufacturing and marketing of (a) products incorporating tetrahydrocannabinol (THC) or derivatives or synthetic versions thereof, (b) spray technologies for use in drug delivery of pain medication, or (c) any new molecules which were in development at the time of departure, except with the prior written consent of the Board.

You acknowledge that this Offer Statement represents the entire agreement between you and the Company as of the date hereof and that no prior verbal or written agreements, promises or representations that are not specifically stated in this Offer, are binding upon the Company.

If you are in agreement with this Offer Statement, please sign below.

Accepted: _____
Mike Gurry
Senior Director-Managed Market Operations

Date: _____

Approved: _____
Dan Brennan
COO

Date: _____